Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

PARLIAMENT RESOLUTION NO. 507

RESOLUTION EXPRESSING SUPPORT TO THE MOTIONS FILED BY THE BANGSAMORO ATTORNEY GENERAL'S OFFICE AND OTHER INDIVIDUAL MOTIONS BEFORE THE SUPREME COURT REGARDING THE EXCLUSION OF THE PROVINCE OF SULU FROM THE BANGSAMORO AUTONOMOUS REGION IN MUSLIM MINDANAO

WHEREAS, Section 15, Article X of the 1987 Philippine Constitution, provides that *"there shall be created autonomous regions in Muslim Mindanao and in the Cordilleras consisting of provinces, cities, municipalities, and geographical areas sharing common and distinctive historical and cultural heritage, economic and social structures, and other relevant characteristics within the framework of this Constitution and the national sovereignty as well as territorial integrity of the Republic of the Philippines;"*

WHEREAS, Section 25, Article II of the Constitution provides that *"the State shall ensure the autonomy of local governments;"*

WHEREAS, Republic Act No. 6734, which became law on August 1, 1989, governed the creation and operations of the defunct Autonomous Region in Muslim Mindanao (ARMM), which, following a plebiscite on November 17, 1989, encompassed Lanao del Sur, Maguindanao, Sulu, and Tawi-Tawi;

WHEREAS, Republic Act No. 9054, which strengthened, expanded, and amended R.A. No. 6734, was enacted on March 31, 2001, and took effect following its ratification through a plebiscite on August 14, 2001, in which six (6) municipalities of Lanao del Norte; thirty-nine (39) barangays in the municipalities of Aleosan, Carmen, Kabacan, Midsayap, Pigkawayan, and Pikit in the Province of North Cotabato; Cotabato City; and Isabela City in the Province of Basilan, voted for inclusion in the ARMM;

WHEREAS, on March 2, 2014, the Comprehensive Agreement on the Bangsamoro (CAB) was signed during a ceremony, concluding seventeen (17) years of negotiations between the Government of the Philippines and the Moro Islamic Liberation Front (MILF);

WHEREAS, Republic Act No. 11054, also known as the *"Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao"*, was signed into law on July 27, 2018, by Former President Rodrigo Duterte, and it repealed Republic Act No. 6734 as amended by Republic Act No. 9054;

WHEREAS, the Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM) was ratified through a plebiscite on January 21, 2019, for the core territories, namely the provinces of Lanao del Sur, Maguindanao, Sulu, Basilan, and Tawi-Tawi, the component cities of Marawi and Lamitan, and the City of Cotabato;

WHEREAS, on February 6, 2019, another plebiscite was held in Lanao del Norte, and in the municipalities of Aleosan, Carmen, Kabacan, Midsayap, Pikit, and Pigkawayan in North Cotabato, and other areas that sought inclusion in the proposed BARMM, resulting in the inclusion of 63 barangays from North Cotabato;

WHEREAS, Section 2 (a), Article III of Republic Act No. 11054 states that the territorial jurisdiction of the BARMM, subject to the necessary plebiscite, shall include, among others, the current geographical area known as the Autonomous Region in Muslim Mindanao, which was established under Republic Act No. 6734, as amended by Republic Act No. 9054, which includes the Province of Sulu;

WHEREAS, Section 2, Article IV of the same Act states that *"In the exercise of its right to self-governance, the Bangsamoro Autonomous Region is free to pursue its political, economic, social, and cultural development as provided for in the Organic Law;"*

WHEREAS, by virtue of the abovementioned Act, the Bangsamoro Autonomous Region has established offices with the necessary facilities, employed staff, and exercised oversight and control over programs and projects within its jurisdiction, including the Province of Sulu, since the law took effect in 2019;

WHEREAS, the Bangsamoro Transition Authority (BTA) was created pursuant to Section 2, Article XVI of Republic Act No. 11054 and shall serve as the interim government in the Bangsamoro Autonomous Region during the transition period, with the Moro Islamic Liberation Front (MILF) leading the BTA, without prejudice to the participation of the Moro National Liberation Front (MNLF) in its membership;

WHEREAS, on October 28, 2021, Former President Duterte signed Republic Act No. 11593 or the law extending the transition period of Bangsamoro Autonomous Region from 2022 to 2025, thereby postponing the first regional parliamentary elections in the region;

WHEREAS, Section 2 of the said law provides that *"During the extension of the transition period, the BTA shall continue as the interim government in the BARMM: provided, however, that the President may appoint the eighty (80) new interim members of the BTA who shall serve up to June 30, 2025 or until their successors shall have been elected and qualified;"*

WHEREAS, President Ferdinand *"Bongbong"* Marcos, Jr. administered the oath to 80 newly appointed and re-appointed members of the BTA during a ceremony at Malacañang Palace on August 12, 2022;

WHEREAS, the BTA, being the interim government of BARMM, plays a significant role as an instrument of inclusive, beneficial, transparent, and ensure the smooth implementation of the provisions of the Republic Act No. 11054 and the CAB before the end of the transition period;

WHEREAS, on September 9, 2024, the Supreme Court promulgated its *"En Banc"* decision on the case of *"Province of Sulu, et al. v. Medialdea, et al.,"* with General Register Nos. 242255, 243246, and 243693, ruling that Republic Act No. 11054 is constitutional, while excluding the Province of Sulu from the jurisdiction of BARMM after the province rejected the law's ratification in the plebiscite;

WHEREAS, the Supreme Court's decision to exclude the province of Sulu from BARMM has caused and created ambiguities in the provisions of the BTA's already enacted Bangsamoro Autonomy Acts, which can tremendously affect crucial aspects of the upcoming BARMM parliamentary elections, including the composition of the Bangsamoro Parliament, the distribution of seats in parliamentary districts, and the rights to vote and to be elected, including representation, among other things;

WHEREAS, the BARMM's official receipt of the Supreme Court decision was on September 16, 2024;

WHEREAS, the Bangsamoro Attorney-General's Office (BAGO) was created by virtue of Bangsamoro Autonomy Act No. 5 or otherwise known as, *"An Act Creating the Bangsamoro Attorney-General's Office, Defining Its Functions and Powers, Appropriating Funds Therefor, and for Other Related Purposes";*

WHEREAS, Section 4, Article II of the abovementioned Act provides that the Bangsamoro Attorney-General is mandated to be the chief legal counsel of the Bangsamoro Government;

WHEREAS, on October 1, 2024, the Bangsamoro Government, through the BAGO, filed a Motion for Leave to intervene and to admit the attached Motion for Partial Reconsideration before the Supreme Court on its decision excluding the Province of Sulu from the BARMM;

WHEREAS, under the Rules of Court, particularly Section 1, Rule 19, it is provided, *"A person who has a legal interest in the matter in litigation, or in the success of either of the parties, or an interest against both, or is so situated as to be adversely affected by a distribution or other disposition of property in the custody of the court or an officer thereof may, with leave of court, be allowed to intervene in the action. Court shall consider whether or not intervention will unduly delay or prejudice the adjudication of*

rights of the original parties, and whether or not the intervenor's rights may be fully protected in a separate proceeding;"

WHEREAS, Section 1, Rule 52 of the said Rule states that *"A party may file a Motion for Reconsideration of a judgment of final resolution within fifteen (15) days from notice thereof, with proof of service on the adverse party;"*

WHEREAS, the Motion for Leave to intervene filed by BAGO is its way to request the Supreme Court's permission to allow the Bangsamoro Government to be part of the case, despite it not originally being involved in the proceeding;

WHEREAS, BAGO Officer-in-Charge Atty. Mohammad Al-Amin Julkipli said in an interview that *"for us in the BARMM, there is a special circumstance because when this case was filed in 2018, the BARMM was not yet constituted. When it was already pending in the [Supreme] Court, the BARMM, even though it has already been constituted, was not formally impleaded; meaning, throughout the light life of the case, the autonomous region itself was never a party;"*

WHEREAS, he also clarified that as written in the judgment, the Supreme Court decision is *"immediately executory"* and not *"final and executory,"* which means that there is still room to resort to legal remedies, such as a Motion for Partial Reconsideration;

WHEREAS, he further said, *"more importantly, as the Chief Minister emphasized, it is because the province of Sulu is very fundamental to the cause of the Bangsamoro... and that it is part and parcel of the Bangsamoro identity with a very important role to play in our continuous struggle for our autonomy and development as one people;"*

WHEREAS, several members of the Bangsamoro Transition Authority (BTA) Parliament have also filed similar motions before the Supreme Court;

WHEREAS, on October 17, 2024, BTA Parliament Deputy Speaker, Atty. Laisa Masuhud Alamia, filed a Motion for Leave to intervene, with an attached Motion for Partial Reconsideration, before the Supreme Court, arguing that excluding the Province of Sulu from the Muslim autonomous region would disrupt the ongoing peace and development efforts in the region, as it contradicts the longstanding sociocultural cohesion of the Bangsamoro people;

WHEREAS, moreover, she stated that *"it is our hope that we can continue to work on building a just and lasting peace for our people, including our constituents in Sulu. Otherwise, we might end up being forced apart despite our desire to uplift every Bangsamoro as our people intended when we struggled together for our right to self-determination;"*

WHEREAS, on October 18, 2024, Member of Parliament (MP) Engr. Don Arbison Loong, together with MP Adzfar Usman, Atty. Nazir Ynawat, Atty. Jamal Kulayan, Nasser Arbison Loong, Mhavejekamar L. Marrack of Tulong Lupah Sug, and Atty. Moh Raf Tungupon Baird, also formally submitted a Motion to Intervene and a Verified Motion for Partial Reconsideration before the Supreme Court;

WHEREAS, they argued that the exclusion of Sulu directly contradicts the Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao, which was designed to unify the historically and culturally connected areas of Mindanao and the Sulu Archipelago into one cohesive Bangsamoro region;

WHEREAS, they outlined in their petition how the Province of Sulu would be deprived of essential funding and development programs critical to its future, further stating that in 2024, the Ministry of Finance, Budget, and Management (MFBM) allocated over Four Billion Five Hundred Million Pesos (₱4.5B) to support seven thousand eight hundred seventy-two (7,872) positions in Sulu's ministries and offices, which represent more than just numbers, as they are lifelines for thousands of families, fueling hope and stability in the region;

WHEREAS, the Supreme Court decision, as soon as it becomes final and executory, will completely remove the Province of Sulu from the Bangsamoro Autonomous Region's jurisdiction, which will have a significant impact on the offices established, the associated infrastructures, and the personnel employed therein;

WHEREAS, the Province of Sulu's exclusion will entail legal, financial, administrative, and social changes that will have far-reaching implications to the entire Bangsamoro Autonomous Region;

WHEREAS, absent its absolute finality, the decision's immediate implementation could cause instability and confusion in the region, which could have serious effects for the Province of Sulu and its residents, as well as for the region's larger governance and peace-building initiatives;

WHEREAS, in addition to its legal significance, the Province of Sulu's strong and deep historical and cultural ties to the Bangsamoro identity and struggle makes it an integral part of the Bangsamoro;

WHEREAS, without the Province of Sulu and its people, the Bangsamoro would never be the same;

WHEREAS, the transition period plays a crucial role in ensuring the smooth establishment of BARMM as an autonomous political entity, with enhanced self-governance and jurisdiction over the Bangsamoro region, free from legal impediments;

WHEREAS, during the regular session of the BTA Parliament on September 16, 17, 18, and 19, 2024, MPs Don Mustapha Loong, Nabil Tan, Tawakal Midtimbang, Romeo Sema, Eddie Alih, Hamid Malik, Jose Lorena, Matarul Estino, and Baileng Mantawil delivered privilege speeches with regard to the exclusion of Sulu from the BARMM, and in the course of period of interpellations, MP Rasol Mitmug, Jr. raised a motion recommending to the Government of the Day, through the Bangsamoro Attorney General's Office, to file a Motion for Reconsideration:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority Parliament, To express support to the motions filed by the Bangsamoro Attorney General's Office and other individual motions before the Supreme Court regarding the exclusion of the Province of Sulu from the Bangsamoro Autonomous Region in Muslim Mindanao.

RESOLVED, FURTHER, To forward a copy of this Resolution to the Supreme Court for consideration and appropriate action.

ADOPTED, *Rabi Al-Akhir* 20, 1446/October 23, 2024.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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